



MCLEAN, RICHARD WILLIAM
ABN 72066207615

2 McCubbin Street
FOOTSCRAY VIC 3011

Attention: Richard Mclean
By email: rich@richmclean.com.au

Notice of decision to refuse application to be a registered NDIS provider
Section 73E of the *National Disability Insurance Scheme Act 2013* (Cth)

I refer to your application to be a registered NDIS provider, which was made on 18 December 2019.

I have considered the relevant information held by the NDIS Quality and Safeguards Commission (NDIS Commission). I have decided to refuse your application to be a registered NDIS provider. My decision is made on the basis that you:

- have breached a condition of your registration and are therefore not suitable to provide supports or services to people with disability.
- have not been assessed by an approved quality auditor as meeting the applicable standards and other requirements prescribed by the NDIS Practice Standards.

My reasons for decision are set out at Attachment A.

The refusal of registration takes effect on the date of my decision, being 28 October 2022.

Effect of refusal on registration

Having made an application, section 73K of the *National Disability Insurance Scheme Act 2013* (NDIS Act) provides that your registration continues in force until a decision is made on the application.

As I have refused your application for registration, the effect of that decision is to end your registration as a registered NDIS provider as at 28 October 2022, being the date of my decision.

You will no longer be able to provide supports to any NDIS participant whose plan is managed by the National Disability Insurance Agency. Plan managers must also be registered to manage the funding of supports under NDIS participants' plans. You will also not be able to provide supports or services that require registration, such as implementing restrictive practices or the provision of specialist disability accommodation (these requirements are set out in the *National Disability Insurance Scheme (Provider Registration and Practice Standards) Rules 2018*).

Non-compliance with these requirements may result in you being liable to a civil penalty under section 73B of the *National Disability Insurance Scheme Act 2013* (NDIS Act).

Review under section 100 of the NDIS Act

You may request a review of my decision to refuse to register you as a registered NDIS provider. You may do so within three (3) months from the date this decision is served on it.

Any application for an internal review will be dealt with by someone who was not involved in the making of the decision.

Should you wish to request a review of my decision, it may make the request in writing and email it to review@ndiscommission.gov.au or send it by post, addressed to:

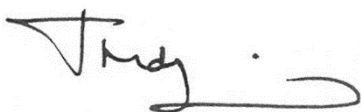
Director Provider Registration
NDIS Quality and Safeguards Commission
PO Box 210
Penrith NSW 2751

Alternatively, you may telephone the Provider Registration team on 1800 035 544 to request a review of the decision or to arrange to make the request in person.

Once any review of the decision has been finalised by the reviewer, you may also seek a further review of that decision by the Administrative Appeals Tribunal under section 103 of the NDIS Act.

I note that my decision does not preclude you from applying in the future to be a registered NDIS provider.

Yours sincerely



Trudy Tweedie
Director Provider Registration
NDIS Quality and Safeguards Commission
[NDISCommission.gov.au](https://www.ndiscommission.gov.au)

1800 035 544
registration@ndiscommission.gov.au
Level 1, 121 Henry St
PENRITH NSW 2750

28 October 2022

Attachment A

Reasons for decision, under section 73E of the *National Disability Insurance Scheme Act 2013 (Cth)* (NDIS Act), to refuse MCLEAN, RICHARD WILLIAM's application for registration as a registered NDIS provider

On 28 October 2022, I decided to refuse the application made by MCLEAN, RICHARD WILLIAM (the Applicant) on 18 December 2019 to be a registered NDIS provider.

These are my reasons for refusing the application.

Procedural history

1. On 1 July 2019, the registration of the Applicant transitioned to the jurisdiction of the NDIS Commission, and the following registration condition was imposed (under section 73G of the NDIS Act):

‘Within 9 months after the date identified above (on your certificate of registration) as the end of the period for which the registration is in force, your organisation must take all action necessary for the approved quality auditor to submit the completed quality audit of your organisation to the Commission.’
2. The end of the period for which the registration was in force identified on your Certificate of Registration was 31 March 2020.
3. The 9-month period identified in the condition of registration ended on 31 December 2020.
4. On 18 December 2019 the Applicant commenced a renewal application for registration as a registered NDIS provider.
5. On 26 August 2022, the NDIS Commission wrote to the Applicant to advise that they may be in breach of the above condition of registration, advising that immediate steps needed to be undertaken to undergo an audit against the applicable NDIS Practice Standards for the classes of support applied for. The letter stated in part: ‘The NDIS Commission will monitor any action taken by you to address the identified failure to complete an audit. The NDIS Commission may refuse your application for registration should you fail to undergo a quality audit as required’.
6. On 29 September 2022 the Applicant was sent a notice by email under section 73C(4) of the NDIS Act advising that the Applicant was in breach of the above condition of registration. The notice required information to be provided confirming the engagement of an approved quality auditor and the dates for a scheduled Stage 1 audit, by 5pm, 20 October 2022. The notice stated that failure to do so may result in the refusal of the application for registration. The notice also advised that if unable to provide the requested information by the nominated dates, a submission may be made about the application for registration.

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7. On 30 September 2022, an email was received in response to the Notice referred to in point 6 (above). The email advised, amongst other matters, that the Applicant wished to sustain their registration. Further, the email listed financial and other issues experienced by the Applicant.
 8. To date, the Applicant has not provided evidence that they have been assessed by an approved quality auditor as meeting the applicable standards and other requirements prescribed by the NDIS Practice Standards.

Relevant legislation

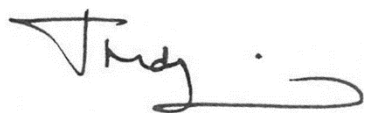
9. Section 73E(1) of the NDIS Act sets out the matters that must be taken into account when making decisions on whether to register a person as a registered NDIS provider. The section relevantly states that the Commissioner may register a person as a registered NDIS provider if:
 - a. the Commissioner is satisfied that the applicant is suitable to provide supports or services to people with disability, having regard to any matters prescribed by the NDIS rules (see section 73E(1)(d)); and
 - b. the applicant has been assessed by an approved quality auditor as meeting the applicable standards and other requirements prescribed by the NDIS Practice Standards (see section 73E(1)(c)).
10. Section 9 of the Rules sets out the matters that the Commissioner must have regard to when assessing the suitability of an applicant.
11. The Rules also contain the NDIS Practice Standards. The *National Disability Insurance Scheme (Approved Quality Auditors Scheme) Guidelines 2018* (the Auditor Guidelines) provides the framework for audits of registered NDIS providers or applicants by approved quality auditors to assess conformity with the NDIS Practice Standards.
12. The Applicant needed to be assessed against the relevant module(s) of the NDIS Practice Standards for the class(es) of supports it sought registration for.

Reason for decision

13. The decision to refuse the application by the Applicant is made on the basis that the Applicant:
 - a. is not suitable to provide supports or services to people with disability, taking into account section 73E(1)(d) and section 9(2)(i) of the Rules, due to it being in breach of its condition of registration, and therefore in contravention of section 73J of the NDIS Act:
 - i. the Applicant was to have taken all action necessary for an approved quality auditor to have submitted the completed quality audit by 31 December 2020;
 - ii. no completed quality audit has ever been received;
 - b. has not met the requirement specified in section 73E(1)(c) of the NDIS Act; namely that you have never been assessed by an approved quality auditor as meeting the applicable standards and other requirements prescribed by the NDIS Practice Standards.
14. Before I made my decision, I considered the information provided on 30 September 2022 regarding the ongoing difficulties you have experienced during the course of your registration. I

reiterate that this decision does not preclude you from applying to be a registered NDIS provider in the future.

15. Having regard to all of the matters noted above I refuse, pursuant to section 73E of the NDIS Act, the Applicant's application to be a registered NDIS provider.

A handwritten signature in black ink, appearing to read 'Trudy', followed by a long horizontal flourish.

Trudy Tweedie
Director Provider Registration

28 October 2022